

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:

Mr. Justice Md. Moinul Islam Chowdhury

Civil Revision No. 158 of 1995

Bhagyadhar alias Mrityyunjoy Daria being
dead his heirs: 1(ka) Suvash Datta @ Daria
and others

.....The defendant-petitioners

-Versus-

Jitendra Nath Barai being dead his heirs:
1(a) Nilkanta Bari and others

.....The plaintiff-opposite parties

Mr. Bivash Chandra Saha, Advocate

..... For the petitioners

Mr. Nikhil Kumar Saha, Advocate

..... For the Opposite Parties

Heard on: 22. 11.2016 and

Judgment on: 14.12.2016

At the instance of the present defendant-appellants-petitioners, Bhagyadhar alias Mrityyunjoy Daria being died his heirs Suvash Chandra Dutta and others, this Rule has been issued calling upon the opposite parties to show cause as to why the impugned judgment and decree dated 10.11.1994 and 15.11.1994 passed by the Subordinate Judge, 2nd court, Gopalganj in Title Appeal No. 53 of 1990 should not be set aside.

This Rule is directed against the judgment and decree dated 10.11.1994 and 15.11.1994 respectively passed by the learned Subordinate Judge, 2nd court, Gopalganj in Title Appeal No. 53 of 1990 allowing the appeal in part, modifying the judgment and decree dated 24. 05.1990 and

16.06.1990 respectively passed by the learned Assistant Judge, Kotwalipara in Title Suit No. 86 of 1985 decreed the suit.

The relevant facts for disposal of this Rule, inter alia, are that the present plaintiff-opposite-parties, Jitendra Nath Barai being died is heirs Nilkanta Barai and others, as the plaintiffs filed the Title Suit No.86 of 1985 in the court of the learned Assistant Judge, Kotwalipara, Gopalganj for declaration of title and partition in the property described in the schedule of the plaint. The plaint case is that Ketu Barai had two sons Raghunath Barai and Ambika Barai who owned 2.09 acres of land in the C. S. Khatian No. 72 and 1.82 arces of land in C. S. Khatian No. 51 in Mouza of Bara Deeghalia, and was in possession of the land. The said two children of Ketu Barai succeed the land. Raghunath Barai died leaving behing is only wife Ful Mala who got half share of the above mention land as a property of life interest. During R.S. record of right their names where recorded in Khatian Nos. 32, 173 and 174 measuring land 1.82 acres, 0.51 acres and 0.58 acres respectively, but wrongly Ambika Charan name was recorded in R.S Khatian No. 32 as the heir as Ful Mala had the right upon the eight annas in all the above R.S. Khatian who had been in possession through bargadar and she never transfered any of her land. Ful Mala requested the other share holder defendants for partition of the land and filed the partition Suit No. 459 of 1976 which was withdrawn subsequently. The aforementioned Ketu Barai had two brothers namely, Bhajan and Abatar, both sons claimed right of reversioner heir of Fulmala

and got the right. However Ambika Charan transferred land measuring $0.9\frac{1}{2}$ in the name of Karna Bhari who is the brother of plaintiffs No. 1 and 2.

Therefore, the plaintiffs have been in possession upon the land measuring 2.05 acres as described in the plaint. The defendants do not have any right as Fulmala never transferred her property to Tarini Daria by the deed dated 27.02.22 which is forged documents there was no compromise degree in the Title Suit No. 198 of 1957. When Fulmala requested for partition the defendant denied, thereupon the suit was filed.

The present petitioners as the defendant Nos. 14 and 16 contested the suit by filing a written statement contending, inter alia, that C. S. record published in the name of Ketu, Raghunath and Ambika. After Ketu Raghunath and Ambika inherited the land. Raghunath died leaving behind widow Fulmala who transferred 01.71 acres of land for the legal necessity and right of her inherited land through a sale deed dated 27.02.1922 from C. S. Khatian No. 72 to Tarini Daria and Surendra Nath Daria and their legal heirs, the present defendants have been in possession for a long period of time in R. S. khatian No. 173.

Ambika Charan transferred the land of. 58 acres in C. S. Khatian No. 72 by the deed dated 07.03.1934 to Tarini Charan thus R.S Khatian No. 174 was recorded in his name who and also after his death present defendant petitioners succeed the land but the said deed wrongly mention. $19\text{ and } \frac{1}{2}$ acres of land. The Title Suit No. 198 of 1957 was compromised by

Fulmala as she had no right upon the land. Therefore the plaintiffs had no right as reversioner heir successor of Raghunath and Fulmala.

After hearing the parties and also considering the evidence produced by the parties the learned Assistant Judge, Kotalipara Gopalganj, decreed the suit by his judgment and decree dated 16.06.1990. Being aggrieved the present petitioners as the appellants preferred the Title Appeal No. 53 of 1990 in the court of the learned District Judge, Gopalganj which was heard by the learned subordinate Judge, Gopalganj who allowed the appeal in part by modifying the measurement of land. This revisional application has been filed challenging the said judgment and decree and obtained the present Rule thereupon.

Mr. Bivash Chandra Saha, the learned Advocate appearing for the petitioners along with the learned Advocate Mr. Kazi Akbar Ali, submits that the deed dated 27.02.1922 was executed and registered by Fulmala and Ambika and at that time of Ambika was probable reversioner heir of Fulmala's husband and as Ambika was one of the executors of the deed the presumption is that Ambika was reversioner heir who gave consent for transferring the land by Fulmala and as such the said transfer was made for legal necessity but the learned courts below committed error in holding that the defendants have failed to prove that there was legal necessity at the time of execution of the deed dated 27.02.1922.

In support of his submission the learned Advocate referred clause 183 of the Principles of Hindu Law by Mulla (fourteenth Edition) and also

he referred case of Joyanta Bijoy Chakraborty Vs. Gopesh Chandra Chakraborty and others reported in 35 DLR (AD), 319.

The learned Advocate further submits that the plaintiff opposite parties could not have the right of reversioner as the heirs as they were not within the purview of the Hindu law, as such, the judgment and decree passed by the appellate court below should be set aside and the right upon the land should be declared and the Rule should be made absolute.

The Rule has been opposed by the present plaintiff opposite parties.

Mr. Nikhil Kumar Saha, the learned Advocate appearing for the opposite party Nos. 1-8 submits that the learned trial court decreed the suit infavour of the present opposite parties on the basis of the findings inter alia, that the plaintiff have proved its case that they are the reversioner heir of Raghunath Barai and Fulmala and Bhajan and Abatar are the full brothers of Raghunath as well as the sons of Gopal Barai and the plaintiff has been possessing the same for long years but the defendants have failed to prove their documents upon which they are claiming their rights in the disputed land. However the learned appellate court below allowed the appeal in part modifying the judgment and decree on a wrong finding of the Hindu law as to widow life interest therefore, the appellate court committed in error of law and misread the evidence provided by the parties, as such, the Rule is liable to be discharged.

The learned Advocate further submits that the plaintiff opposite parties claim of right of reversioner as heirs has been proved by the plaintiffs by produced documents and also by evidence deposition in court

as PWs and some of the DWs therefore, the learned trial court came to lawful conclusion as to the claim of the opposite parties, but the learned court modified the measurement of land without any basis.

The learned Advocate also submits that under the principal of Hindu law a widow can have right upon the Husband property for her life time and she does not have any right to sell unless and until she can prove through adducing sufficient evidence as to the legal necessity of money explained in the document itself that transaction would make a transferee valid in an exceptional circumstances therefore the learned trial court committed no error of law but the learned appellate court below committed an error of law by modifying judgment and decree, as such, the Rule should be discharged.

Considering the above submissions made by the learned Advocates appearing for the respective parties and also considering this revisional application filed under section 115(1) of the Code of Civil Procedure along with the annexure therein, in particular, the impugned judgment passed by the learned appellate court below and also considering the materials in the lower court records, it appears to me that the present opposite parties as the plaintiffs filed the title suit for a declaration of title and partition of the suit land described in the plaint. The suit was filed upon the cause of action which arose when the present defendant petitioner denied to made an amicable partition.

The respective factual aspects of the parties have been described above at the beginning of the judgment and order. From the given factual

aspects I have been carefully considered the differences between the parties and I found that the matter of reversioner right as the heirs and transfer of widow property on the ground of legal necessity are important factors. I will embark or focus upon the above to legal matters under the Hindu law.

In the above matter of reversioner right as heirs the learned advocate for the petitioner cited of the principle of Hindu law from the book title as (the principles of Hindu law) written by D.F Mollah, at page 227 which reads as follows:

“Alienation by widow with consent of reversioners, that is, for presumptive legal necessity-(1) When the alienation of the whole or part of the estate by a Hindu widow or other limited heir is to be supported on the ground of legal necessity, then if such necessity is not proved aliunde and the alienor does not prove inquiry on his part and honest belief in the necessity, the consent of such reversioners as may fairly be expected to be interested to dispute the transaction will be held to afford a presumptive proof which, if not rebutted by contrary proof, will validate the transaction as a right and proper one.”

The learned advocate also cited a case of Joyanta Bijoy Chakraborty Vs. Gopesh Chandra Chakraborty & others (1983), 319 which reads as follows:

Hindu Law

“Widow’s right of alienation-Legal necessity of an alienation not established-Reversioner however gives consent to the alienation by the Hindu widow-That constitutes a valid transfer unless rebutted by contrary proof.

Section 183 of the Principles of Hindu Law by Mulla (Fourteenth Edition) provides that when the alienation of the whole part of the estate by a Hindu widow or other limited heir is to be supported on the ground of legal necessity, then if such necessity is not proved aliunde and the alienor does not prove inquiry on his part and honest belief in the necessity, the consent of such reversioners as may fairly be expected to be

interested to dispute the transaction will be held to afford a presumptive proof which, if not rebutted by contrary proof, will validate the transaction as a right and proper one.

It having been found in the instant case that the transaction was with the knowledge and consent of the defendant petitioner (the next reversioner) there will be a presumption as aforesaid as to the existence of legal necessity until dislodged by counter evidence by any other interested party”.

From the above submission of the learned advocates referring to the authorities regarding the legal necessity to transfer any property inherited by a widow under Hindu Law. I have carefully examined the above two references and I am of the view that the book written by Mulla Para 183 provides right of reversioner. A transfer of any widow property has a presumptive value only and such presumption can be rebutted by adducing and producing evidence.

In the present case the present-defendant petitioners claimed that Raghunath Ambika Barai consented transfer of land by Fulmala therefore, the presumption is that the transfer was validly undertaken.

However, after examining the document itself for transfer by Fulmala which does not contain any explanation of legal necessity for transfer of the land, eventhough, Ambika claims to be a reversioner successor.

In this regard I am of the opinion that under Hindu Law, the legal necessity is an exception to the general principle that a Hindu widow can only enjoy husband property as a heir for life time share and it is called a life time interest of a widow, however, if there is any legal necessity,

including, performing religion Pindow for the peace of soul of the deceased husband, maintenance of herself and children or any debt incurred by the deceased husband among others however the above necessity would be taken to be valid if and only if, the document of transfer clearly explains or states such necessities otherwise it will be certainly difficult to assert the genuineness of legal necessities.

In the instance case such kind of difficulty is present because the defendant petitioners claims that the some of the widow property was sold on 27.02.1922 by Fulmala on the ground of legal necessity but the petitioner could not adduce sufficient evidence to prove the same. I have carefully perused exhibit-ka dated 27.02.1922 which contains আমা-দর নগদ টাকার আবশ্যক হয় ভোগ দখলীয় নিম্ন তপসীনের ও চৌহদ্দী জমি ১-৫১ শতাংশ হস্তান্তর।

The above document was executed by Fulmala as per the provision of Hindu Law as to legal necessity but the transfer by a widow property cannot be made on the ground simply that money was required because such a simple description of selling a widow property is not permitted, therefore, the transaction purportedly created in the year of 1922 had not transferred any entitlement in favour of the transferees who are the present defendant petitioners.

As per the above discussion I am of the view that the learned trial has not committed an error of law to decree the suit filed by the present plaintiff opposite party but the learned appellate court below committed an error of law by finding that 18 decimal was validly transferred by the deed

dated 27.02.1922 and the modification of the lower court judgment was not valid in the (eye) law.

Now, let my examine the judgment and decree passed by the learned trial court as well as the appellate court below. The learned trial court after considering the evidence produced and adduced by the respective parties in support of their respective cases, came to a lawful conclusion to decree the suit regarding the land measuring 2.05 acres on the basis of the following findings:

“প্রতি-যাগী ৪ নং বিবাদী পক্ষ আদাল-ত ১২-০৮-২০২৯ ইং তারিখের কবলা দলিলটি (এক্সিবিট- এ) দাখিল ক-র। তার মোকাদ্দমাকে আইনানুগভাবে প্রমাণ করতে সক্ষম হয়েছে। প্রতি-যাগী ৪নং বিবাদী পক্ষ তা-দর লিখিত জবা-ব ইহাও স্বীকার ক-র যে, নালিশী জমি রঘুনাথ তথা ফুলমালার Next Reversionar হি-স-ব বাদীগণ স্বত্ব দখল লাভ ক-র-ছ এবং ভোগ দখল ক-র সুতরাং ইহাছাড়া প্রতি-যাগী ১৪/১৬নং বিবাদীপক্ষ আদাল-ত ফুলমালা যে, ২৭-০২-১৯২২ ইং তারি-খর দলিল মু-ল নালিশী জমি Legal necessity এর জন্য বিক্রয় করেছিল তাহাও প্রমাণ কর-ত পা-র নাই। সেহেতু প্রতিযোগী ১৪/১৬ নং বিবাদীগণ অত্র মামলায় প্রতিকার পে-ত হকদার ন-হ। অপর দি-ক প্রতি-যাগী ৪ নং বিবাদীপক্ষ আইনানুগভাবে তার মোকদমা প্রমাণ করে নালিশী জমির ০.৫২শতাংশ জমি-ত উৎস্বত্ব দখল প্রমাণ কর-ত সক্ষম হয়েছে। যেহতু বাদীগণ তাদের মোকাদ্দমা প্রমান করতে পেরেছে সে-হতু বাদিগণ অত্র মামলায় আইনানুগ প্রতিকার পেতে হকদার ব-ট। ”

On the other hand, the learned appellate court below allowed the appeal by modifying the measurement of the land on the basis of following findings:

“মোকদমাটি বর্তমান আকারে ও প্রকা-র সচল এবং তামাদি বারিত ন-হ ম-র্ম বিজ্ঞ নিম্ন আদালতের প্রদত্ত সিদ্ধান্ত সঠিক বলিয়া প্রতীয়মান হয়। বাদীগণ বিগত ০৮-০৯-৪৪ এবং ২০-১০-৪৪ ইং তারি-খর ০২ খন্ড নাদাবিপত্র মুলে অশ্বিকা চরনের নিকট হইতে. $০৯\frac{1}{2}$ একর ভূমি প্রাপ্ত হইয়াছেন দাবী করেন। বিজ্ঞ ন্মি আদালতে উক্ত দলিল মুলে বাদীগণের স্বত্ব থাকা মর্মে সিদ্ধান্ত দিয়াছেন। উক্ত দলিল দাখিল না হওয়ায় আ-দী অশ্বিকা চরন ১, ২ নং বাদীর পিতা গঙ্গাচরনের নিকট নাদাবী পত্র মুলে সম্পত্তি হস্তান্তর করিয়াছেন কিনা

তাহা সম্পর্কে নিশ্চিত হওয়া যায় না। তাহাছাড়া নাদাবীপত্র মূলে কোন স্বত্ব সৃষ্টি হয় না। সুতরাং ১, ২ নং বাদীর নাদাবীপত্র মূলে দাবীকৃত. $০৯\frac{1}{2}$ একর ভূমি-ত স্বত্ব সৃষ্টি হয় নাই। বিজ্ঞ নিম্ন আদাল-তর এই বিষয়ে প্রদত্ত সিদ্ধান্তের সহিত আমি দ্বিমত পোষণ করি।

বিবাদী আপীল্যান্ট পক্ষের বিজ্ঞ আইনজীবী দাবী করেন যে, মূল মোকদমাটি হচপটে দোষে দুষ্ট। বিবাদী পক্ষ বর্ননায় এই বক্তব্য উত্থাপন করেন নাই। বিবাদীপক্ষ বর্ননায় পক্ষ দোষের কথা উত্থাপন করি-লও পরবর্তি-ত নাম ধাম সরবরাহ করার নি-র্দশ (পূনঃ-১৬) -দওয়া হই-ল তাহারা দরখাস্ত দাখিল করিয়া অব্যাহতি চাহিয়া-ছেন। সি, এস, ৫১ নং খতিয়া-ন ক-য়কটি দা-গর আংশিক ভূমি ঐ খতিয়ানের রেকর্ড হওয়ায় দাগের বিক্রি সম্পত্তি হচ, পট ভুক্ত করা প্র-য়োজন বলিয়া আপীল্যান্ট পক্ষ দাবী ক-রন। সি, এস, ৫১ নং খতিয়া-ন যে সকল দা-গর আংশিক ভূমি রেকর্ড হইয়া-ছ ঐসকল দাগের সম্পত্তি এজমালী ভূমি নহে এবং অন্য খতিয়ানে রেকর্ড হওয়ায় এজমালী ভূমির বাহিরে অন্য কোন ব্যক্তির সম্পত্তি হচ, পট ভুক্ত করার প্রয়োজন নাই। সুতরাং, বিবাদী আপীল্যান্টের বিজ্ঞ আইনজীবীর কথিত মতে মোকদমাটি হচপটে বারিত মর্মে প্রদত্ত যুক্তি সঠিক ন-হ। বাদী রেসপ-ন্ডেন্ট পক্ষ রঘুনা-থর রিভারশনার ম-র্ম তাহা-দর দাবী প্রমান করিয়া-ছেন। ফুলমালার মৃত্যু-ত তাহারা রঘুনাথের ত্যাজ্য সম্পত্তিতে স্বত্ববান হইয়াছেন তাহাও প্রমানিত হইয়া-ছ। বাদীগনের দাবীকৃত ২.০৫ একর ভূমি। উক্ত ভূমি মধ্যে ১নং তপশি-ল তাহা-দর দাবী। আনা অংশ ১.০৪ $\frac{1}{2}$ একর। উক্ত সম্পত্তির তাহাদের স্বত্বস্বার্থ প্রতিষ্ঠিত হইয়া-ছ। ২নং তপশি-ল দাবীকৃত বাদীগ-নর। ১৮ অংশ ১.০০ $\frac{1}{2}$ একর। উক্ত ভূমি মধ্যে মধু দাড়ায়র নিকট বিক্রিত ০.১৮ একর এবং নাদাবী মূলে দাবীকৃত. $০৯\frac{1}{2}$ একর। উক্ত ০.২৭ $\frac{1}{2}$ একর ভূমি বা-দ. ০৭৩ একর ভূমি-ত বাদীগন এক ডিক্রি প্রতিষ্ঠিত হইয়াছে। বিজ্ঞ নিম্ন আদালত ২.০৫ একর ভূমি বাবদ বাদীগনকে ডিক্রি করিলেও বাদীগন ১.৭৭ একর ভূমি-ত স্বত্বস্বার্থ প্রমান করি-ত পারায় উক্তভূমি বাবদ তাহারা ডিক্রি পাওয়ার অধিকারী। বক্রি সম্পত্তি বাবদ মোকদমা ডিসমিস হইবে। সুতরাং, বিজ্ঞ নিম্ন আদাল-তর প্রদত্ত রায় ও ডিক্রি পরিবর্তিতভাবে বহাল থাকার যোগ্য।”

The appellate court below committed an error of law by modifying the judgment of the trial court because he misread and failed to consider the evidence regarding the land which reads as follows:

“এভা-ব ১/২ নং বাদী পৈত্রিক ওয়ারেশীস্বত্বে $০.০৯\frac{1}{2}$ শং ফুলমালার স্ব-ত্বর অ-র্ধক ৯৭।। আনা অংশ মোট ২.০৫ শং জমি-ত ১২ বৎস-রর উর্দ্ধকাল যাবৎ দখলকার আ-ছ ন বাদীগন জোর দি-য় ব-ল অম্বিকার কোন পুত্র সন্তান না থাকায় তার একমাত্র কন্যা বকফুল

অস্বিকার পূর্বেই মারা যাওয়ায় তার ২পুত্র ১/২ নং বিবাদী ফুলমালার কোন স্বত্বাংশ আইনতঃ পেতে পারে না।”

In view of the above, the judgment and decree passed by the appellate court below who allowed the appeal but modified the measurement of land.

The judgment and decree passed by the learned Assistant Judge, Kotwalipara Gopalganj is hereby declared valid and the judgment and decree passed by the Subordinate Judge, 2nd Court, Gopalganj is hereby set aside.

Accordingly, I do not find merit in the Rule.

In the result, the Rule is discharged.

The interim order of stayed granted at the time of issuance of the Rule is hereby recalled and vacated.

The office is directed to communicate the judgment and order to the court concerned immediately and send down the lower court record at once.